



SPONSOR: Rep. Morrison & Sen. Cruce
Reps. Osienski, Bolden, Heffernan, Lambert, Neal,
Phillips, Burns, Gorman, Kamela Smith, Berry, Snyder-
Hall; Sens. Sokola, Walsh, Hansen, Lockman, Hoffner,
Sturgeon

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 273

AN ACT TO AMEND TITLE 19 OF THE DELAWARE CODE RELATING TO EMPLOYMENT PRACTICES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 711, Title 19 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 711. Unlawful employment practices; employer practices.

(u) (1) It is an unlawful employment practice for an employer to request information from an employee or
potential employee relating to any of the following:

a. The individual's political party or voting history.

b. Contributions the individual makes to candidates for office.

c. Contributions the individual makes to political committees.

(2) It is an unlawful employment practice to fail or refuse to hire or to discharge any individual or otherwise to
discriminate against an individual with respect to compensation, terms, conditions, or privileges of employment
because of any of the following:

a. The individual's political party or voting history.

b. Contributions the individual makes to candidates for office.

c. Contributions the individual makes to political committees.

(3) This subsection does not apply if the individual's political affiliation or preference is a bona fide
occupational qualification for the job. For political affiliation or preference to be a "bona fide occupational
qualification" under this subsection, an employer must establish that the employment is in furtherance of a particular
political purpose.

(4) This subsection does not apply if the individual's political contributions must be disclosed to the employer
pursuant to a federal or state law that requires employers to disclose political contributions of its employees.

SYNOPSIS

This Act prohibits employers from asking employees or potential employees about political preferences, including donations the employee makes to candidates for office or political committees. It also prohibits employers from taking any adverse action against an employee based on political affiliation or preference. The prohibition does not apply if a political affiliation or preference is a bona fide occupational qualification of the employment. It also does not apply if employer disclosure of employee contributions is required by federal or state law.